

TENTATIVE RULINGS

FOR: June 04, 2026

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Dept. A Zoom

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CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Peter Brenden Freskan Shanks v. Alisha Alba Keith

25CV000978

DEFENDANT ALISHA A. KEITH’S DEMURRER TO PLAINTIFF’S VERIFIED FIRST AMENDED COMPLAINT FOR DAMAGES; AND DEMURRER TO PLAINTIFF’S VERIFIED FIRST AMENDED COMPLAINT FOR DAMAGES

TENTATIVE RULING: The Demurrer is SUSTAINED and the matter is STAYED, pursuant to Code of Civil Procedure section 430.10, subdivision (c) and the Court’s inherent authority, pending resolution of Plaintiff’s claims against Defendant in *Estate of Claudette Freskan Shanks*, Napa County Superior Court case no. 19PR000143 (“Probate Case”). The matter is set for a Conference Re: Status of Probate Case on September 9, 2026, at 8:30 a.m. in Dept. A. The parties shall file a joint conference status, reporting on the status of the Probate Case as it pertains to the issues raised by the present Complaint, no later than five court days prior to the status conference.

The moving party included, in the notice of this motion, a former version of the Tentative Ruling notice required by Local Rule 2.9. The current version, effective 1/1/26, allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Alisha A. Keith (“Defendant”) moves, pursuant to Code of Civil Procedure section 430.10, subdivisions (a), (c), (e) and (f),¹ for an Order sustaining the Demurrer to the Verified First Amended Complaint for Damages (“FAC”) filed by Plaintiff Peter Brenden Freskan Shanks (“Plaintiff”). Defendant so moves on the grounds that the FAC is incurably uncertain; is under the exclusive jurisdiction of the court sitting in Probate in case number 19PR000143, in which an action already is pending; the First, Fourth, Fifth, Tenth and Fifteenth causes of action fail to state facts sufficient to constitute a cause of action; and the Fifth Cause of Action is time barred by the applicable statute of limitations.

The FAC asserts the following 15 causes of action against Defendant: First Cause of Action for Dependent Adult Abuse, Second Cause of Action for Receipt of Stolen Property, Third Cause of Action for Breach of Fiduciary Duty, Fourth Cause of Action for Conversion, Fifth Cause of Action for False Promise, Sixth Cause of Action for Constructive Fraud, Eighth Cause of Action for Negligence, Ninth Cause of Action for Intentional Infliction of Emotional Distress (“IIED”), Tenth Cause of Action for Intentional Interference with Expected Inheritance, Eleventh Cause of Action for Restitution, Twelfth Cause of Action for Liability for Taking Property – Double Damages Thirteenth Cause of Action for Recovery of Estate Property, Fourteenth Cause of Action for Violation of Post-Removal Duties, Fifteenth Cause of Action for Pre-Death Financial Elder Abuse.

B. BACKGROUND

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

The following facts are taken from the Court file in the Probate Case. (Evid. Code, 452, subd. (d).)

On July 8, 2019, Defendant petitioned for letters of administration for the probate of Decedent Claudette Freskan Shanks' ("Decedent") estate. The Court issued letters to Defendant on August 22, 2019. On August 21, 2024, Plaintiff filed a petition for removal of Defendant as administrator, based upon Defendant's alleged inaction in administering the estate and availing herself of the estate assets to her own personal benefit. The Court removed Defendant as administrator on January 6, 2025, and Professional Fiduciary Janette Brooks was appointed as successor administrator. Ms. Brooks presently serves as the successor administrator.

The operative pleading as it pertains to Plaintiff and Defendant appears to be Defendant's January 31, 2025 Accounting, to which Plaintiff filed objections on February 14, 2025 and supplemental objections on April 28, 2025. The Court's review of Plaintiff's supplemental objections to Defendant's Accounting indicates that Plaintiff raises several of the same issues alleged in the present Complaint. While the Objection does not assert causes of action, the objections are based upon, and put at issue, the same misconduct alleged in the Complaint regarding Defendant's activity from before Decedent's death, as a former administrator of Decedent's estate, and after Defendant's removal as administrator, including objections based on elder abuse, mismanagement of assets, conversion, etc. The relief requested in the supplemental objections is denial of Defendant's Accounting and for such other and further orders as the Court deems just and proper.

Plaintiff and Defendant have engaged in two discovery-related motions pertaining to Defendant's Accounting and Plaintiff's claims of Defendant's commingling of Decedent's funds and the breach of Defendant's fiduciary duties. (See, e.g., Plaintiff's Opposition to Defendant's Motion to Quash Subpoena, filed 8/22/25; Plaintiff's Separate Statement, filed 9/12/25.)

The case is currently pending. It is set for a Status Conference Re: Status of Mediation on July 15, 2026.

C. DISCUSSION

"The party against whom a complaint ... has been filed may object, by demurrer ..., to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading[,] (c) There is another action pending between the same parties on the same cause of action[,] (e) The pleading does not state facts sufficient to constitute a cause of action[,] and (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible." (§ 430.10.)

Here, Defendant's demurrer is brought upon the foregoing four grounds. While the parties devote most of their argument and authority to the three grounds under subdivisions (a), (e), and (f), the Court need not (and does not) reach those grounds, as it finds the circumstances appropriate to sustain the demurrer in its entirety under subdivision (c) based on the pending Probate Case.

In support of her demurrer, Defendant argues “[t]hese parties have been involved in active litigation over the management of the Estate since August 2024, in the Probate Matter. Thus, ... these allegations ... are already pending in the Probate Matter.” (Memorandum, 5:25-27.) Then, as to each of the 15 causes of action, Defendant argues that related claims are already pending, or have already been adjudicated, in the Probate Case. (*Id.*, 6:11-13, 8:24-28, 9:3-7, 9:15-17, 10:8-10, 10:15-17, 10:20-22, 10:26-28, 11:6-9, 12:1-3, 12:6-9, 12:13-16, 12:19-21, 12:26-28, 13:8-10.)

Plaintiff does not meaningfully address this ground in Opposition, seeming to conflate it with subdivision (a)’s ground of lack of jurisdiction based on a probate court’s exclusive jurisdiction. While Plaintiff disputes that the Complaint is subject to the exclusive jurisdiction of a probate court, Plaintiff does not dispute that the issues raised through his Complaint are at issue in the Probate Case, or that he could assert the issues through a formal petition in the Probate Case. The only justification provided by Plaintiff for opening a separate civil case instead of filing a formal petition in the Probate Case appears to be based upon Plaintiff’s understanding that the “civil causes of action ... entitle[] him to a jury” and that issues subject to “probate-exclusive jurisdiction[,] [namely] probating wills, determining distribution, administering estates, and the internal affairs of trusts,” are not at issue in the Complaint. (Opposition, 3:22-25.)

To the extent Plaintiff is under the assumption that he is not entitled to a jury trial for causes of action asserted in probate, Plaintiff provides no authority for that prohibition. Rather, “issues of fact joined in probate proceedings [must] be tried in conformity with the requirements of the rules of practice in civil actions” which has been interpreted to mean that jury trials are available in probate proceedings when the issues would be appropriate for a jury trial in a civil context. (*Estate of Phelps* (1990) 223 Cal.App.3d 332, 338-39.) Moreover, as Defendant argues in Reply, Plaintiff’s Complaint—as described by Plaintiff himself in Opposition as covering Defendant’s “(a) breaches of fiduciary duty committed during her administration; (b) ongoing conversion and possession of estate property after her removal; (c) abdication of her duties as administrator which caused damage to the Estate and to Brenden; (d) bad faith resistance to accounting challenges; and (e) post-removal interference with the successor administrator’s duties”—involves the very issues Plaintiff contends are within a probate court’s jurisdiction.

Thus, Plaintiff’s supposed justification for filing a separate civil action against Defendant as opposed to keeping all related matters in the Probate Case is misplaced. Because the Probate Case involves the same parties and issues, has been pending since 2019, and is currently at the stage of mediation with the potential for resolution of issues raised in the Complaint, the demurrer is SUSTAINED. “Where a demurrer is sustained on the ground of another action pending, the proper order is not a dismissal, but abatement of further proceedings pending termination of the first action.” (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 788.)

To the extent Plaintiff takes issue with the fact that no “causes of action” are asserted against Defendant in the Probate Case, the identity of a “cause of action” is determined by a comparison of the facts alleged in each action which show the nature of the invasion of plaintiff’s primary rights. To be the same “cause of action,” each action must allege invasion of the same “primary right.” Here, the facts underlying Plaintiff’s claims asserted in the Complaint

and Plaintiff's objections to Defendant's Accounting in the Probate Case allege invasion of the same primary rights—right to be free from Defendant's mismanagement of estate assets and right to receive the benefits of Defendant properly carrying out her administrator duties. If the Probate Case resolves the claims raised against Defendant pertaining to the Accounting, that will be res judicata as to at least some of the claims in the present lawsuit. If for any reason the Probate Case is not decided on the merits or does not resolve all causes raised in the Complaint, the present action can then proceed.

Finally, and separate from section 430.10, subdivision (c), the Court finds that, as a matter of judicial efficiency and to avoid inconsistent rulings, the present action should be stayed pending disposition of the issues in the Probate Case. (See *Thomson v. Continental Ins. Co.* (1967) 66 Cal.2d 738, 746-47 [“Granting a stay in a case where the issues in two actions are substantially identical is a matter addressed to the sound discretion of the trial court.”].) For this separate reason, the Court elects to exercise its inherent discretion to stay the present action pending resolution of Plaintiff's objections to Defendant's Accounting in the Probate Case. This ruling is without prejudice to Plaintiff formally pursuing his claims, as set out in the present Complaint, against Defendant in the Probate Case (i.e., by way of a verified petition).

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Beverly J. Ribelin

19PR000041

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

APPEARANCE REQUIRED

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In the Matter of the Melvin D. Cooke Trust

26-65041

TWELFTH ACCOUNT AND REPORT OF TRUSTEE; PETITION FOR SETTLEMENT OF ACCOUNT, AND FOR APPROVAL OF TRUSTEE FEES

TENTATIVE RULING: The Petition is GRANTED, except the amount of compensation awarded to Petitioner is \$45,220.89, as provided in the Declaration of Frank Toller filed on May 22, 2026.

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In The Matter of Federico E. Yagin

26PR000053

REVIEW HEARING: CONFIRM FILING OF MC-356

TENTATIVE RULING: The matter is CONTINUED to July 2, 2026, at 8:30 a.m. in Dept. B. The purpose of this hearing is to confirm petitioner's filing of the “Receipt and Acknowledgement of Order for the Deposit of Money Into Blocked Account (form MC-356)”